

it was applied. In *The Queen v. Archdall*, 8 Ad. & E. 281, 3 Nev. & P. 696, the right of the vice-chancellor to have the sole control over granting licences for the sale of beer in Cambridge, was disputed; and the judgment was for the university, for reasons which may be adopted in the present case. The court there took notice that a control of the most absolute kind in certain respects was necessary for the preservation of discipline and morals, and the prevention of the disorder which the age and dispositions of the younger students would tend to produce; that the university, generally a favoured body, was not unlikely to procure from the Crown what might reasonably be asked for, and, being a learned body, would procure it in such a form as would render the grant valid. The court further felt itself bound to presume in favour of the existing user, and refused to call on the vice-chancellor to justify the exercise of an ancient practice. If the place was lawful, it was not contended that the treatment therein would, upon these pleadings and this evidence, constitute a substantive cause of action against the defendant.

For these reasons, we think that the defendant is entitled to make the rule absolute to enter the verdict for him, pursuant to the leave reserved at the close of the plaintiff's case. We consider that the replication, admitting the statute which confirmed the charter set out in the plea as fully as if it was repeated verbatim therein, admitted the charter as set out. But, if it was not thereby admitted, then, on giving the charter in evidence, the right of the defendant would be the same.

The other part of the rule,—for entering the verdict for the defendant upon the special finding of the jury,—is thus rendered immaterial: but the general importance of the case induces us to make some remarks upon the phases which it presents from this latter point of view. The contested allegations in the plea were disposed of separately at the trial. The construction of the charter, and the absence of a warrant, were within the province of the judge, and not for the jury. Of the other allegations, three only were required to be left to the jury separately, viz. first, whether the proctors had reasonable cause for suspicion of the plaintiff; secondly, whether the vice-chancellor [559] heard and examined the plaintiff; thirdly, whether the place of imprisonment, and the treatment therein, were lawful. The jury found that the proctors had reasonable cause for suspicion, and that the complaint of the prison and the treatment therein was unfounded: but, in respect of the hearing and the examination of the plaintiff, they found that the defendant had not made due inquiry into her character, and (a matter clearly beyond their province) that the punishment was undeserved. This finding of the jury must be considered together with the course of proceeding at the trial.

The facts deposed to by the plaintiff, were, for the most part, undisputed,—being confirmed by the evidence for the defendant. In respect of the facts themselves, there was no question: in respect of the effect of those facts, there was contest. Thus, the circumstances of the apprehension were not in dispute; but the contest was, whether, under those circumstances, the proctors had reasonable cause for suspicion. Thus, also, the statement of the plaintiff, that the vice-chancellor made inquiries of her, and heard her answers, was not in dispute; but the contest was, whether he had a right to put those inquiries to her, or to decide without hearing testimony on oath, or to decide without sending to refer to the persons mentioned by the plaintiff as knowing her character. The allegation was that the defendant heard and examined the plaintiff. The plaintiff contended that the jury ought not to find that he had done so, if they were of opinion that the hearing and examination was not properly conducted in all or either of these respects. It appears by the finding, and by what passed at the time of the verdict, that the jury were of opinion that the hearing was not properly conducted in this respect,—that the defendant did not make due inquiry into the plaintiff's character. [560] Now, although they meant their finding to support the plaintiff's case, they did not mean to do so at the expense of truth, nor to disaffirm the plaintiff's account of what passed between her and the defendant when she was brought before him. It was accepted as an imperfect verdict, rather than that the trial should be rendered abortive by reason of the jury not coming to an agreement: and we consider we give effect to the intention of the jury if we put this construction upon the whole of their finding,—that all the allegations in the plea are proved, with this exception, that, after the hearing, the defendant did not make such due inquiry into the plaintiff's character as he was in their opinion bound to do. In this sense, it certainly did not amount to a verdict for the plaintiff, because there is no issue